

Court No. - 37

Case :- WRIT - C No. - 37297 of 2012

Petitioner :- Ram Kumar

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- R.K. Verma

Respondent Counsel :- Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner and Ms. Anamika Singh, learned counsel appearing for respondents no.1 to 3.

By means of this writ petition the petitioner has prayed for a writ of mandamus directing the respondents to correct the electricity bill of the petitioner for an amount of Rs. 2,40, 550/- and further to direct the respondents to decide his representation dated 20.6.2012.

The petitioner's case in the writ petition is that a theft assessment was made against the petitioner on 24.5.2008. On the basis of the checking report it is submitted that an FIR was also lodged which resulted the acquittal of the petitioner on 2nd December, 2011.

Learned counsel for the respondents submits that against the final assessment remedy is available to the petitioner to file statutory appeal under Section 127 of the Electricity Act, 2003 and no representation can be entertained as submitted by the petitioner.

The representation of the petitioner cannot be treated to be a statutory appeal and no direction can be given as

prayed for. The Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 contain ample statutory provisions for the redressal of the grievances. The petitioner may seek statutory appeal as provided under the Act and the Supply Code.

With the aforesaid observation, the writ petition is dismissed.

Order Date :- 9.8.2012

SKM